DENIAL OF A STEWARD DURING AN INTERROGATION

If the employee requests a steward or Union representative during an interrogation, and agents from the Office of Inspectors General (OIG) or the Postal Inspection Service fail to permit the presence of a steward or fail to respect the role of the steward, an unfair labor practice charge should be filed with the National Labor Relations Board, (NLRB).

It is recommended that two separate charges be filed. Both the Local Union and the individual employee, who is the subject of the interrogation, can file an unfair labor practice charge with the NLRB.

To file a successful claim, both the employee and the Local Union must make it clear, both during the interrogation and again to the NLRB, that the employee requested the assistance of a Union representative or steward.

The employee can claim a violation of Section 8(a) (1) of the National Labor Relations Act.

The body of such a charge filed by an employee should allege that:

"On or about **insert date**, the U.S. Postal Service interfered with, restrained and coerced **insert employee's name**, an employee of the USPS, in the exercise of his/her Section 7 rights by, among other things, failing and refusing to permit the presence and/or participation of a Union representative during the course of an interrogation by the Employer in violation of the law." *(See NLRB v. Weingarten, 420 U.S. 251 (1975)* and Barnard *College, 340 NLRB No. 934 (2003).*

The Local Union should claim a violation of Section 8(a) (1) and (5) of the National Labor Relations Act, alleging:

The body of such a charge filed by the Local Union should allege that:

"On or about **insert date**, during the interrogation of **insert name of grievant**, an employee of the U.S. Postal Service, the Employer refused to permit **insert steward's name**, APWU Union's steward's, participation in the interview even though the employee requested to have a steward present. This is a direct violation of the Postal Service's legal and contract obligations." *(See NLRB v. Weingarten, 420 U.S. 251 (1975)* and Barnard *College, 340 NLRB No. 934 (2003).*